



FEDERAL MARITIME COMMISSION
OFFICE OF THE SECRETARY
800 North Capitol Street, N.W.
Washington, DC 20573-0001

Phone: (202) 523-5725
Email: secretary@FMC.gov

April 3, 2026

Wayne R. Rohde
Cozen O'Connor
2001 M Street NW, Suite 500
Washington, DC 20036

Via email: wrohde@cozen.com and via UPS: Tracking No. 1Z1Y2R54NT92548450

RE: Special Permission Request for Maersk A/S, Org. No. 025360, SP-011978

Dear Mr. Rohde:

This is to advise that the application for special permission submitted on March 11, 2026, has been denied.

Under 46 U.S.C. § 40501(a)(1), each common carrier “shall keep open to public inspection in an automated tariff system, tariffs showing all its rates, charges, classifications, rules, and practices between all points or ports on its own route and on any through transportation route that has been established.” Additionally, under 46 U.S.C. § 40501(e)(1), “[a] new or initial rate or change in an existing rate that results in an increased cost to a shipper may not become effective earlier than 30 days after publication. However, for good cause, the Federal Maritime Commission may allow the rate to become effective sooner.”

The Commission has determined that Maersk A/S, Org. No. 025360, has failed to establish good cause and, therefore, the request to approve the application for special permission to depart from the statutory notice period requirements has been denied. For awareness, we refer you to Chairman DiBella’s March 23, 2026 statement on establishing good cause in special permission applications, which can be found here: <https://www.fmc.gov/fdo/statement-of-chairman-laura-dibella-on-special-permissions/>.

Sincerely,

David Eng
Secretary